

See Line 9

11. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
*HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE
FILED RE: JEFFREY TRAVERS, ESQ.
FILED BY: CLASEN, COLLEEN R.
TENTATIVE RULING:

See Line 9

12. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
*HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE
FILED RE: ORLA O'CALLAGHAN
FILED BY: SYNGENTA AG
TENTATIVE RULING:

See Line 9

13. 9:00 AM CASE NUMBER: MSC19-00771
CASE NAME: GREG HART VS THOMAS MILWAY
HEARING IN RE: MOTION TO ALLOW FIRST AMENDED CROSS COMPLAINT
FILED BY:
TENTATIVE RULING:

This hearing on this motion is **vacated**. Moving party withdrew the Motion on June 22, 2026. No appearance is required on July 1, 2026.

14. 9:00 AM CASE NUMBER: MSC20-00441
CASE NAME: MILZ VS. SILVERA
*HEARING ON MOTION IN RE: ATTORNEY'S FEES
FILED BY: SILVERA, M. MARKETTA
TENTATIVE RULING:

Summary

Defendants Ronald and Marketta Silvera ("Defendants") unopposed Motion for Attorney's Fees and Costs is **granted** as set forth below. No appearance is required at the hearing on July 1, 2026.

Background

Plaintiffs Mark Milz and Milz Development & Construction, Inc. (collectively "Plaintiffs") commenced this action against Defendants Ronald and Marketta Silvera ("Defendants") in March 2020, alleging claims arising from a Residential Purchase Agreement ("Agreement") pursuant to which Plaintiffs purchased Defendants' family home. Defendants sold the property as part of their retirement relocation to Arizona. The Agreement contains an attorney's fees provision in Paragraph 25, which states that in any action arising out of the Agreement, "the prevailing Buyer or Seller shall be entitled to reasonable attorney fees and costs from the non-prevailing Buyer or Seller, except as provided in paragraph 22A." Paragraph 22A requires mediation prior to commencing any action and bars recovery of fees by a party who fails to participate in such mediation.

Plaintiffs filed their complaint without first demanding mediation, though the parties subsequently engaged in unsuccessful mediation. Following extensive litigation, Defendants prevailed on their motion for summary judgment, with this Court ruling in favor of Defendants on all causes of action. The matter is now before the Court on Defendants' motion for attorney's fees and costs pursuant to California Civil Code section 1717. Plaintiffs failed to file a timely opposition to the instant motion.

Analyses

Under California Civil Code § 1717, when a contract contains a provision for attorney's fees, the prevailing party in an action arising out of that contract shall be entitled to recover reasonable attorney's fees incurred in the prosecution or defense of the action. A defendant becomes a prevailing party by obtaining a "simple, unqualified victory"—completely prevailing on or defeating all contract claims in the action. See *Scott Co. of Calif. v. Blount, Inc.* (1999) 20 Cal. 4th 1103, 1109. Where a fee provision uses "arising out of" language, attorney fees are awardable on both contract and tort claims that arise out of the contract. *Santisas v. Goodin* (1998) 17 Cal. 4th 599, 608

A. Plaintiffs' Failure to Oppose Constitutes Consent to the Motion

California Rules of Court, Rule 8.54(c), provides that "[a] failure to oppose a motion may be deemed a consent to the granting of the motion." See *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257. *Gwaduri v. I.N.S.*, 362 F.3d 1144, 1146 (9th Cir. 2004) (failure to file timely opposition is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified"); *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) (party who fails to file opposition waives opposition and may not be heard to complain); *Nazir v. United Airlines, Inc.* (2009) 178 Cal. App. 4th 243, 288 (failure to address or oppose issue in motion constitutes waiver); *Badie v. Bank of America* (1998) 67 Cal. App. 4th 779, 784–785 (failure to support point with reasoned argument and citations constitutes waiver).

Local rules of this Court reinforce this principle. See *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas* (2005), 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of issues). Furthermore, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements." Contra Costa County Superior Court Local Rules.

Here, Plaintiffs' failure to timely oppose Defendants' Motion for Attorneys' Fees and Costs is deemed consent to the granting of the motion. The Court therefore consider the motion on the merits based upon Defendants' uncontested showing.

B. Defendants Are the Prevailing Parties

Defendants are prevailing parties entitled to attorney's fees under Civil Code section 1717(b)(1). This Court granted Defendants' motion for summary judgment, ruling against Plaintiffs on all causes of action and thereby defeating all contract claims in the action. Under *Scott Co. of Calif. v. Blount, Inc.*, (1999) 20 Cal. 4th 1103, 1109, such an unqualified victory entitles the successful party to recover reasonable attorney's fees incurred in defense of those claims. The fact that Plaintiffs pleaded tort claims in addition to contract claims does not alter this result. Where, as here, a prevailing party clause uses "arising out of" language, attorney fees are awardable on tort claims that "arise out of" the contract. *Santisas v. Goodin* (1998) 17 Cal. 4th 599, 608.

C. Paragraph 22A Does Not Bar Recovery

Paragraph 22A of the Agreement does not bar Defendants' recovery of attorney's fees. That provision would have barred Plaintiffs from recovering fees had they prevailed, because they filed the complaint without first demanding mediation. However, Paragraph 22A imposes no bar upon Defendants, who were denied the contractual right to mediate prior to being forced to defend this lawsuit. The mediation prerequisite applies to the party who institutes litigation without compliance, not to the defending party who was subjected to suit without the benefit of the contractual dispute resolution mechanism.

D. The Requested Fees and Costs Are Reasonable

The Court finds that the reasonable market value of attorney services is the proper measure of a reasonable hourly rate. *Nemecek & Cole v. Horn* (2012) 208 Cal. App. 4th 641, 651. The record submitted by Defendants establishes that the hourly rates charged by Counsel are reasonable and consistent with market rates in the Bay Area. Counsel Robert Ward, a practitioner with 32 years of experience, bills at a rate below the 90th percentile for comparable firms in the region. Courts routinely apply market rates to fee awards based upon evidence of counsel's experience and comparable billing rates. *Syers Properties III, Inc. v. Rankin* (2014) 226 Cal. App. 4th 691, 700; *Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal. App. 4th 359, 395–397

The amount of work performed is likewise reasonable and well-documented. Mr. Ward expended less than 50 hours on this case over a six-month period, which is surprisingly low for litigation pending since March 2020. The work focused on preparing for and taking Plaintiff Milz's deposition and drafting the summary judgment motion, which relied upon admissions obtained during that deposition. Paralegal services were necessary and reasonable for deposition and summary judgment preparation. Courts may accept counsel's computation of hours reasonably spent. *Syers*, *supra*, 226 Cal. App. 4th at 700. The Court finds that the fee request reflects efficient defense of the action.

Defendants have paid or incurred \$54,367.50 in fees and \$2,627.57 in costs. Additional fees of \$3,325 for reply brief preparation and hearing attendance are properly included in the award. Based upon the foregoing, the Court hereby finds and orders as follows:

Ruling

1. Defendants' Motion for Attorneys' Fees and Costs is **granted**;
2. Plaintiffs shall pay Defendants attorney's fees in the amount of \$57,692.50 and costs in the amount of \$2,627.57, for a total award of \$60,320.07, no later than thirty (30) days from the date of entry of this order;
3. The Court will execute the proposed order lodged on June 25, 2026, and direct the Clerk of the Court to attach this ruling thereto; and
4. No appearance is required at the hearing scheduled for July 1, 2026.

15. 9:00 AM CASE NUMBER: N25-2020

CASE NAME: PETITION OF:ALAN KAPLAN

***HEARING ON MOTION IN RE: VACATE DISMISSAL, AND FOR ORDER REFORMING RELEASE OF MECHANIC'S LIEN**

FILED BY: KAPLAN, ALAN